

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE DANIEL D. DOMENICO**

Courtroom Deputy: Robert R. Keech
Court Reporter: Julie Thomas

Date: May 1, 2023

Civil Action No: **1:20-cv-01194-DDD-MDB**

Counsel:

HAMKIM, INC., d/b/a Vista Inn,

Preston J. Dugas, III
Michael Y. Kim

Plaintiff,

v.

AMGUARD INSURANCE COMPANY,

Laura J. Ellenberger
Jason D. Melichar

Defendant.

COURTROOM MINUTES

TRIAL TO JURY (DAY 1)

8:40 a.m. **Court in Session.** Jury not present.

APPEARANCES OF COUNSEL.

Court's opening remarks.

Discussion regarding the use of an interpreter, Yoonjoo Mager (Korean) for Kevin Kim, the representative for Plaintiff.

Discussion regarding exhibit lists and exhibits.

Court rules on objections to slides counsel plans to refer to in opening statements.

9:07 a.m. Court in Recess.

9:20 a.m. Court in Session. Jury present.

Appearances of counsel and parties.

Court's opening remarks to prospective jurors.

9:27 a.m. Voir dire oath given.

9:28 a.m. Voir dire by Court commences.

9:33 a.m. Bench conference regarding voir dire of juror 100446827.

9:34 a.m. Voir dire by Court continues.

9:37 a.m. Bench conference regarding voir dire of juror 100434808.

9:40 a.m. Voir dire by Court continues.

10:32 a.m. Bench conference regarding challenges for cause as to jurors 100434733 and 100467414. Court will excuse juror 100434733 and defer ruling as to juror 100467414

10:38 a.m. Court in Recess.

10:54 a.m. Court in Session. Jury present.

10:55 a.m. Voir dire by Plaintiff by Mr. Dugas.

11:13 a.m. Voir dire by Defendant by Ms. Ellenberger.

11:29 a.m. Bench conference regarding challenges for cause as to jurors 100453881, 100467414 and 100444869. Court will not excuse juror 100453881 for cause.

Challenges for Cause:

- 1) 100446827
- 2) 100434808
- 3) 100434733
- 4) 100467414
- 5) 100444869

Peremptory challenges by Plaintiff:

- 1) 100453881
- 2) 100426970
- 3) 100447920

Peremptory challenges by Defendant:

- 1) 100436601
- 2) 100457461
- 3) 100452775

11:47 a.m. Jury sworn to try:

- | | |
|--------------|--------------|
| 1) 100464056 | 2) 100454809 |
| 3) 100448934 | 4) 100435695 |
| 5) 100456842 | 6) 100467842 |
| 7) 100462074 | 8) 100458734 |
| 9) 100458700 | |

11:48 a.m. Court reads preliminary jury instructions.

12:08 p.m. Court in Recess.

1:18 p.m. Court in Session. Jury not present.

Discussion regarding slides for Plaintiff's first witness.

1:22 p.m. Jury enters.

1:24 p.m. Opening statement by Plaintiff by Mr. Dugas.

1:44 p.m. Opening statement by Defendant by Ms. Ellenberger.

2:17 p.m. Jury excused.

Discussion and argument regarding issues as to slides for first witness.

2:18 p.m. Court in Recess.

2:32 p.m. Court in Session. Jury not present.

Discussion regarding use of slides and exhibits and stipulated exhibits.

2:48 p.m. Discussion regarding standing issue related to party in interest.

2:58 p.m. Jury enters.

3:00 p.m. Plaintiff's witness **Tom Irmiter** sworn.

Direct examination by Plaintiff by Mr. Dugas.

3:29 p.m. Bench conference regarding objection by Defendant.

3:37 p.m. Direct examination by Plaintiff by Mr. Dugas continues.
Exhibit(s) identified: 24, 5, 6, 4, 23, 1, 2, 3, 14, 13, 12

Exhibit(s) 24, 5, 6, 4, 23, 1, 2, 3, 14, 13, 12 RECEIVED.

4:23 p.m. **Court in Recess.**

4:41 p.m. **Court in Session.** Jury enters.

Plaintiff's witness **Tom Irmiter** resumes.

4:43 p.m. Direct examination by Plaintiff by Mr. Dugas continues.
Exhibit(s) identified: 9, 10, 7, 24, 226, 15

Exhibit(s) 9, 10, 7, 226, 15 RECEIVED.

5:32 p.m. Jury excused until Tuesday, May 2, 2023, at 9:00 a.m.

5:32 p.m. Discussion regarding use of a slide show and conferring concerning slides during the evening recess.

5:36 p.m. **Court in Recess. TRIAL CONTINUED. TOTAL TIME: 7:03**